

Andhra Pradesh Advocates' Welfare Fund (Loans For Purchase Of Books) Rules, 1994

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Andhra Pradesh Advocates' Welfare Fund (Loans For Purchase Of Books) Rules, 1994

Rule ANDHRA-PRADESH-ADVOCATES-WELFARE-FUND-LOANS-FOR-PURCHASE-OF-BOOKS-RULES-1994 of 1994

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Andhra Pradesh Advocates' Welfare Fund (Loans For Purchase Of Books) Rules, 1994

Published vide A.P. by G.O.Ms.No. 111, Law Department Dated 6-8-1994

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In exercise of the powers conferred by sub-section (1) of Section 26 of the Andhra Pradesh Advocates' Welfare Fund Act, 1987 (Act No. 33 of 1987) read with Section 18 of the said Act, the Governor of Andhra Pradesh hereby makes the Andhra Pradesh Advocates Welfare Fund (Loans for the Purchase of Books) Rules, 1994.

1.

Short title and applicability:

(1)

These rules may be called the Andhra Pradesh Advocates' Welfare Fund (Loans for the purchase of Books) Rules, 1994.

(2)

They shall apply to all Advocates who are members of the Fund.

2.

Definitions:

- The words and expressions used in these rules shall have the same meanings assigned to them in the Andhra Pradesh Advocates' Welfare Fund Act, 1987.

3.

Grant of Loan for the purchase of Books:

(1)

It shall be competent for the Welfare Fund Committee to grant a loan not exceeding rupees "[five thousand]

[Substituted by G.O.Ms.No. 160, Law (C), dated 27-8-1996.]

(Nov. 2, '96) to an Advocate who is a member of the Fund and whose standing at the Bar does not exceed five years for the purchase of law books for carrying on his profession.

(2)

Every Advocate desirous of obtaining a loan under these rules, shall make an application in writing to the Secretary of the Welfare Fund duly attested by the President of the Bar Association of which he is a member indicating therein the value of the books he intends to purchase and wherever possible the title, author and publisher of the Books.

4.

Purchasing of Books:

- On receipt of an application under sub-rule (2) of Rule 3, the Welfare Fund Committee shall consider the same and grant or for reasons to be recorded in writing refuse to grant the loan applied for. Where the loan applied for is granted, the Secretary of the Welfare Fund shall purchase the books from dealers approved by the Chairman of Andhra Pradesh Advocates' Welfare Fund Committee and arrange to send them to the Advocate concerned. In case where the application contains the details of the books, the same books shall be purchased and sent to the Advocate concerned and where the Advocate does not specify the details of the books in his application a list/catalogue of books shall be sent to the Advocate concerned asking him to tick the books required by him and return the list/ catalogue to the Secretary. Thereupon, the Secretary shall purchase the Books required by the Advocate from the approved dealer and arrange to send the same to him and the Advocate shall acknowledge the receipt of those books.

5.

[Recovery of the Loan:

[Substituted by Notification No. G.O.Ms. No. 179, Law(C), dated 27.12.2006 (w.e.f. 6.8.1994).]

- The loan granted under these rules shall be recovered in twenty instalments of Five hundred, rupees each payable, once in two month, after receipt of the books and where the loan granted is less than rupees ten thousand it shall be recoverable at the rate of rupees five hundred, once in two months until the loan is liquidated. No interest shall be chargeable on the loan. However, a late fee equivalent to five percent of the instalment is chargeable where the payment of the loan is delayed by more than one month.]

6.

Action for non-payment:

(1)

Where the Advocate taking loan under these rules fails to repay the loan in time and applies for grant of further time for the payment of the loan, it shall be competent for the Chairman of the Welfare Fund Committee to grant such further time as may be deemed reasonable in the circumstances of the case with or without late fee as he deems fit.

(2)

Where an Advocate fails to repay the loan even within the further time granted to him under sub-rule (1), the Welfare Fund Committee shall report the matter to the Chairman of the Bar Council for such action as he deems necessary under the Advocates' Act, 1961.

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